

100 Beal Street: Comprehensive 37-Year Timeline & TLDR Briefing

What Really Happened: From Naval Munitions Bunkers to State-Protected Senior Affordable Housing (1989–2026)

Document Identifier: 100_Beal_Street_Detailed_Timeline_and_TLDR_v1.md
Publication Date: September 2026
Subject Property: 100 Beal Street, Hingham, MA 02043 (Assessor Map 58, Block 0, Lot 23; School Tract II)
Record Fee Owner: Hingham Housing Authority (Independent public body corporate and politic under M.G.L. c. 121B)
Proposed Use: 68-Unit Age-Restricted Senior Affordable Rental Residence (Ages 62+)
Selected Developer: Peabody Properties / Affordable Housing Services Corporation (AHSC)

The Executive TLDR: The Whole Story in 60 Seconds

TLDR: THE BOTTOM LINE IN PLAIN ENGLISH

- **The Land:** In 1989, Hingham sold 15 acres of former Navy depot land off Beal Street to the independent Hingham Housing Authority for \$45,751 to build a group home for troubled youth. A 12-bed home was built on 2 acres and has operated quietly for decades.
- **The Senior Housing Plan:** The remaining 13 acres were cleaned up of old WWII ammo bunkers in 2001. In 2006, Hingham Town Meeting voted by a 2/3 supermajority to allow senior affordable housing on the empty 8-acre plateau. But Town Hall never filed the deed paperwork at the Registry of Deeds.
- **The 2019 Town Hall Lawsuit Threat:** In 2019, right before the 30-year deed mark, the Select Board voted 3–0 to sue the Housing Authority to take the land back. Under pressure, the Housing Authority initially agreed to hand it over.
- **The State Steps In:** The Commonwealth of Massachusetts (DHCD) intervened and said **NO**. Because state public housing money was used, state law (M.G.L. c. 121B, § 34) strictly forbids giving away housing authority land. The State recorded a legal restriction at the Registry of Deeds blocking any transfer, and the Housing Authority voted 4–0 to cancel the giveaway.
- **The Peabody Project:** With ownership secure, the Housing Authority issued a 155-page bid in 2025 and awarded a 99-year ground lease to Peabody Properties to build a 3-story, 68-unit affordable senior community. The developer pays 100% of construction and gives \$500,000 to the town housing authority.
- **The Big Town Meeting Rumor Cleared Up:** Town Meeting **NEVER** killed 100 Beal Street. The project rejected on April 27, 2026 was the **Center for Active Living (CAL)**—a separate \$29.93 million municipal building inside Bare Cove Park that would have raised property taxes. 100 Beal Street costs taxpayers \$0 in town borrowing and remains an active, permitted housing development.

Timeline Overview Matrix

YEAR / DATE	MILESTONE EVENT	PRIMARY PUBLIC AUTHORITY	STATUS OF PROOF	TLDR SUMMARY
April 21, 1989	Town Conveys 15.014 Acres to HHA	Hingham Board of Selectmen → HHA	Recorded Fee Deed (Bk 09097, Pg 158)	Hingham sold 15 acres to HHA for \$45k with a 30-year reverter clause for adolescent care.
1990–Present	Adolescent Group Home Built & Operated	HHA & State Youth Services	Continuous Public Use	12-bed youth group home operates continuously on a 2-acre footprint.
June 12, 2001	Bunker Demolition & Division Survey	Board of Selectmen, HHA & Gale Assoc.	Recorded Survey Plan (Bk 44, Pg 412)	Town cleaned WWII ammo bunkers; land divided into 2-acre youth lot and 8-acre surplus plateau.
May 1, 2006	Town Meeting Approves Senior Housing	Hingham Annual Town Meeting (Art. 38)	Official Town Clerk Certification	Town Meeting voted 2/3 majority to allow senior housing, but Selectmen never recorded deed release.

YEAR / DATE	MILESTONE EVENT	PRIMARY PUBLIC AUTHORITY	STATUS OF PROOF	TLDR SUMMARY
Feb 26, 2019	Select Board Votes 3–0 to Sue HHA	Hingham Board of Selectmen	Official Select Board Minutes (p. 1)	Select Board voted 3–0 to sue HHA to seize the land 9 days before 30-year deed deadline.
June 5, 2019	HHA Initial Vote to Transfer 19 Acres	HHA Board of Commissioners	HHA Minutes (Recited 07/09/2019)	Facing litigation threats, HHA board initially voted to surrender the land to Town Hall.
April–June 2019	State DHCD Supervisory Warnings	Mass. DHCD (Public Housing Division)	Official Agency Correspondence	State warned HHA is an independent entity; public housing land cannot be transferred under M.G.L. c. 121B, § 34.
July 18, 2019	State Records Statutory Transfer Restriction	Mass. DHCD & Plymouth Registry	Recorded Instrument (Bk 51379, Pg 244)	State recorded legal encumbrance on title, formally blocking Town Hall from taking the parcel.
Sept 7, 2021	HHA Votes 4–0 to Rescind Transfer	HHA Board of Commissioners	Official HHA Minutes (pp. 3–4)	HHA unanimously rescinded the 2019 surrender; confirmed property stays with HHA for housing.
Dec 10, 2024	Environmental Wetland ORAD Recorded	Conservation Comm. & MassDEP	Recorded ORAD (Bk 59527, Pg 273)	155+ wetland flags stamped, confirming the buildable upland plateau protects Tucker's Swamp.
April 16, 2025	HHA Issues 155-Page Senior Housing RFP	Hingham Housing Authority	Public Procurement Package	HHA launched public competitive bidding for ~60 senior affordable rental units.
August 12, 2025	HHA Awards Project to Peabody Properties	HHA Board of Commissioners	Official HHA Minutes (p. 2)	HHA voted 4–0 to award 68-unit development to Peabody Properties under 99-year ground lease.
April 27, 2026	Bare Cove Park CAL Defeated at Town Mtg	Hingham Town Meeting (Art. 12)	Official Town Meeting Voting Record	\$29.93M taxpayer debt for senior center in Bare Cove Park failed 2/3 supermajority. 100 Beal was never voted on.
August 25, 2026	HHA Reviews Land Disposition Agreement	HHA Board of Commissioners	Public Meeting Agenda (Item 9)	HHA and Peabody advance final lease agreements and state regulatory contracts.

Detailed Chronological Milestones

1989	→	2001	→	2006	→	2019	→	2021	→	2024	→	2025	→	2026
Deed Conveyed to HHA		Bunker Cleanup & Plan		Town Meeting Vote		Select Board Sues		HHA Rescinds Transfer		Wetland ORAD Recorded		Peabody Award (68 Apts)		CAL Vote in Bare Cove Park

Milestone 1: April 21, 1989 – Town Conveys School Tract II to HHA

- **Document Date:** March 7, 1989 | **Recording Date:** April 21, 1989
- **Recording Citation:** Plymouth County Registry of Deeds, Book 09097, Page 158; Document No. 29758
- **Primary Parties:** Inhabitants of the Town of Hingham (Grantor) → Hingham Housing Authority (Grantee)
- **Status of Proof:** Recorded Legal Instrument
- **Primary Repository File:** [downloaded_sources/documents/Hingham_Beal_Street_Deed_1989_and_ZBA_Decision.pdf](#)

TLDR: What This Milestone Means in Plain English

Thirty-seven years ago, Hingham sold 15 acres of former military land off Beal Street to the town's Housing Authority for \$45,751. The town included a rule: build and run a home for troubled teenagers. If you stop running the youth home, the town has the right to step back in and take the land back—but the deed explicitly stated this right would expire after 30 years.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **Conveyance & Consideration:** The Town of Hingham conveyed a 15.014-acre parcel designated as "School Tract II" to the Hingham Housing Authority for a stated consideration of \$45,751.
2. **Specific Use Restriction (Page 159):** The deed stipulated that the premises were conveyed "*solely for the purpose of constructing, operating and maintaining an adolescent residential educational facility, group care facility or other similar facility for troubled adolescents.*"
3. **The 30-Year Reverter Provision (Page 160):** The deed provided that if the premises ceased to be used for adolescent care, the grantor Town had the right to enter and terminate the estate: > "*provided, however, that said right of entry shall terminate after thirty years from the date hereof as provided in Massachusetts General Laws, Chapter 184A, Section 3.*"
4. **Historical Legal Context:** Under Massachusetts property law, rights of entry and possibilities of reverter are strictly limited by statutory duration limits (M.G.L. c. 184A, § 3 as codified in 1989, and M.G.L. c. 184, § 23) to prevent ancient restrictions from clouding title indefinitely.

Milestone 2: 1990 to Present – Continuous Operation of Adolescent Facility

- **Location:** 100 Beal Street (Southerly 2.0-Acre Footprint)
- **Operating Agency:** State Youth Services / Chapter 689 Provider
- **Status of Proof:** Verified Continuous Public Use
- **Primary Repository File:** [downloaded_sources/architectural_plans/Hingham_100_Beal_ALTA_Survey_and_Subdivision_Plans.pdf](#)

TLDR: What This Milestone Means in Plain English

The 12-bed group home was built with state housing funds and has operated continuously for more than 35 years. Because it never shut down or abandoned its mission, the Town never had grounds to claim a default during the 30-year window.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **Physical Facility:** A 12-bed residential facility was constructed on the frontage of Beal Street on a dedicated 2.000-acre lot.
2. **State Housing Funding (Chapter 689):** The development was funded under the Commonwealth's Chapter 689 specialized housing program, creating an enduring statutory interest under the supervision of state housing agencies.
3. **Continuous Compliance:** At no point between 1989 and 2019 did the adolescent care use cease. The property has remained under active lease to licensed child and youth care providers.

Milestone 3: June 12, 2001 – Bunker Demolition, MOU & Division Plan

- **Survey Date:** June 12, 2001 | **Recording Date:** June 12, 2001
- **Recording Citation:** Plymouth County Registry of Deeds, Plan Book 44, Page 412 (Plan No. 100 of 2001)
- **Surveyor:** Gale Associates, Inc.

- **Status of Proof:** Recorded Boundary Survey Plan
- **Primary Repository File:** [downloaded_sources/architectural_plans/Hingham_100_Beal_ALTA_Survey_and_Subdivision_Plans.pdf](#) (Sheet 4)

TLDR: What This Milestone Means in Plain English

Behind the youth home sat 13 undeveloped acres with old Navy ammunition bunkers. The Town paid to demolish the concrete bunkers and clean up the soil. Then the Town and Housing Authority officially surveyed the land, carving out the 2-acre youth home and creating an 8-acre buildable, clean surplus parcel.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **Naval Bunker Remediation:** Prior to 2001, the interior 13 acres of School Tract II contained abandoned World War II ammunition bunkers and earth mounds from the former Hingham Naval Ammunition Depot. The Town secured funds, demolished the bunkers, and remediated the site.
2. **Division of School Tract II:** Gale Associates prepared a formal plan dividing the 15.014 acres into two distinct parcels:
 - **Lot 1:** 2.000 acres containing the active adolescent group home.
 - **Lot 2:** 8.020 acres of remediated upland plateau with frontage on Beal Street.
3. **Memorandum of Understanding:** The Town and HHA entered into an administrative MOU coordinating site access, utility easements, and long-term planning for the surplus plateau.

Milestone 4: May 1, 2006 – Annual Town Meeting Approves Senior Housing (Article 38)

- **Meeting Date:** May 1, 2006
- **Legislative Body:** Hingham Annual Town Meeting (Warrant Article 38)
- **Certification:** Certified by Town Clerk Eileen A. McCracken
- **Status of Proof:** Certified Municipal Legislative Record
- **Primary Repository File:** [downloaded_sources/documents/Hingham_Town_Meeting_2006_Beal_St_Amended_Deed_Vote.pdf](#)

TLDR: What This Milestone Means in Plain English

Twenty years ago, Hingham voters at Town Meeting voted by a declared two-thirds supermajority to allow senior affordable housing on this land! Town Meeting officially told the Board of Selectmen to amend the 1989 deed restriction. However, Town Hall never actually executed or recorded the amended deed at the Registry of Deeds—a bureaucratic lapse that went unnoticed for over a decade.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **The Warrant Article:** Article 38 was placed before the voters to unlock the surplus 8-acre plateau for the town's growing senior population.
2. **The Enacted Vote:** Town Meeting voted by a declared two-thirds majority: > *"That the Town authorize the Town of Hingham, acting through its Board of Selectmen, to amend the restriction contained in the deed from the Town to the Hingham Housing Authority dated March 7, 1989 ... by adding as an allowable use residential development which includes affordable housing."*
3. **The Unexecuted Mandate:** Despite this clear legislative directive from Town Meeting, the Board of Selectmen never executed an amended deed or formal release, and no confirmatory release instrument was recorded at the Registry of Deeds.

Milestone 5: February 26, 2019 – Select Board Votes 3–0 to Authorize Lawsuit Against HHA

- **Meeting Date:** February 26, 2019 (Executive Session 6:45 PM; Open Session 7:00 PM)
- **Public Body:** Hingham Board of Selectmen (Paul Healey, Karen Johnson, Mary Power)
- **Official Minutes:** Page 1, Select Board Official Records
- **Status of Proof:** Certified Municipal Meeting Minutes
- **Primary Repository File:** [downloaded_sources/meeting_records/Select_Board_Executive_Session_Minutes_2019-02-26_100_Beal.pdf](#)

TLDR: What This Milestone Means in Plain English

In February 2019, the deed's 30-year anniversary was only nine days away. Town Hall realized that if the 30-year mark passed, the Town's legal right of re-entry would expire. The Select Board held an emergency closed-door meeting, came out into open session, and voted 3–0 to sue the Housing Authority to force them to surrender the land.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **The 30-Year Expiration Window:** The 1989 deed had been signed on March 7, 1989. Town Counsel advised the Selectmen that the thirty-year reverter period would expire on March 7, 2019 under M.G.L. c. 184A, § 3.

2. **The Executive Session:** The Selectmen convened in Executive Session under Purpose 3 (to discuss strategy regarding potential litigation).
3. **The Open Session Vote:** Returning to Open Session at 7:00 PM, the Board voted unanimously: > “Mr. Healey made a motion to file litigation regarding enforcement of agreement as to 100 Beal Street, Hingham, MA. Ms. Johnson seconded. All were in favor, 3-0.”

Milestone 6: June 5, 2019 – Housing Authority Votes Under Pressure to Transfer Land

- **Meeting Date:** June 5, 2019 (Special Meeting)
- **Public Body:** Hingham Housing Authority Board of Commissioners
- **Status of Proof:** Official HHA Minutes (Recited in Minutes of July 9, 2019 & Sept 7, 2021)
- **Primary Repository File:** [downloaded_sources/meeting_records/HHA_Minutes_2019-07-09_100_Beal_School_Tract_II.pdf](#)

TLDR: What This Milestone Means in Plain English

Facing an immediate lawsuit from Town Hall, the Housing Authority board held an emergency meeting and voted to give approximately 19 acres back to the Town. On paper, it looked like Town Hall had won the standoff.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **The Litigation Pressure:** Confronted by the Select Board's formal vote to initiate litigation, the Housing Authority convened a special session.
2. **The Transfer Vote:** The HHA Board approved a motion agreeing in principle to convey the surplus acreage (and adjacent Town-associated land totaling ~19 acres) back to municipal control.

Milestone 7: April–June 2019 – State DHCD Intervenes to Protect Public Housing Land

- **Key Dates:** April 19, 2019 & June 26, 2019
- **State Agency:** Massachusetts Department of Housing and Community Development (DHCD, now EOHLC)
- **State Official:** Amy Stitely, Associate Director of Public Housing
- **Governing Statute:** Massachusetts General Laws Chapter 121B, Section 34
- **Status of Proof:** State Administrative Supervisory Letters
- **Primary Repository File:** [downloaded_sources/meeting_records/HHA_Minutes_2019-07-09_100_Beal_School_Tract_II.pdf](#)

TLDR: What This Milestone Means in Plain English

The Commonwealth of Massachusetts stepped in and said: “**Stop.**” Local housing authorities are independent state corporations, not Town departments. Because state money was used to build public housing on Beal Street, state law strictly prohibits giving away housing land without written state approval. The state warned that Hingham Town Hall had no legal right to force a land transfer.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **Independent Statutory Entity:** Under M.G.L. c. 121B, a local housing authority is an independent public body corporate and politic. It is not an arm of municipal government and its assets cannot be seized or surrendered to settle municipal disputes.
2. **State Alienation Restriction (M.G.L. c. 121B, § 34):** The statute explicitly dictates that no housing authority real estate acquired or developed with state assistance may be sold, transferred, or alienated without prior written approval from the state department.
3. **State Warnings to HHA & Town:** DHCD notified both the Housing Authority and Town Counsel that the proposed transfer violated state housing policy and would not receive Commonwealth approval.

Milestone 8: July 18, 2019 – State Records Statutory Transfer Restriction on Title

- **Recording Date:** July 18, 2019 at 1:44 PM
- **Recording Citation:** Plymouth County Registry of Deeds, Book 51379, Page 244; Document No. 55967
- **Grantor/Regulator:** Commonwealth of Massachusetts Department of Housing and Community Development
- **Subject Parcel:** Assessor Map 58, Block 0, Lot 23 (100 Beal Street)
- **Status of Proof:** Recorded Title Encumbrance
- **Primary Repository File:** [downloaded_sources/architectural_plans/Hingham_100_Beal_ALTA_Survey_and_Subdivision_Plans.pdf](#) (*Schedule B, Note 5*)

TLDR: What This Milestone Means in Plain English

To make sure Town Hall could not force a conveyance behind closed doors, the State of Massachusetts went to the Plymouth Registry of Deeds and slapped a permanent legal restriction on the land records. This legally locked title, guaranteeing the land could only be used for public housing.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **Public Notice of Restriction:** DHCD recorded a formal *Notice of Statutory Transfer Restriction* explicitly identifying Map 58, Lot 23.
2. **Title Effect:** Citing M.G.L. c. 121B, § 34, the recorded notice clouds and encumbers the parcel on public land records. Any deed, conveyance, or lease attempted without DHCD's countersignature is void as a matter of state law.
3. **ALTA Survey Abstract:** The 2024 ALTA/NSPS Land Title Survey prepared by Control Point Associates explicitly lists this instrument under Schedule B, Part II, Item 5 as an active, binding encumbrance.

Milestone 9: September 7, 2021 – Housing Authority Votes 4–0 to Rescind Transfer

- **Meeting Date:** September 7, 2021 (Regular Meeting, 30 Thaxter Street)
- **Public Body:** Hingham Housing Authority Board of Commissioners (Sucheck, O'Meara, Lauter, Buhr)
- **Official Minutes:** Pages 3–4
- **Status of Proof:** Certified Municipal Meeting Minutes
- **Primary Repository File:** [downloaded_sources/meeting_records/HHA_Minutes_2021-09-07_Rescission_Vote.pdf](#)

TLDR: What This Milestone Means in Plain English

Backed by the State and advice from municipal attorneys, the Housing Authority held a public meeting and voted 4–0 to officially cancel its 2019 surrender vote. The Housing Authority formally declared that 100 Beal Street belongs to the Housing Authority and will remain public housing land.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **DHCD Guidance & Legal Concurrence:** The Executive Director presented correspondence from DHCD and legal opinions confirming that the transfer could not lawfully proceed.
2. **The Rescission Motion:** > “Commissioner O'Meara made a motion to rescind a prior Motion made at the June 5, 2019 Special Meeting regarding the transfer of ~19 acres of HHA property off Beal Street to the Town of Hingham. Commissioner Lauter seconded.”
3. **The Unanimous Vote:** > “The Motion was passed on a 4–0 vote. That Motion is now rescinded and the land in question shall remain in the ownership of the Hingham Housing Authority.”

Milestone 10: December 10, 2024 – Conservation Commission Records Wetland ORAD

- **Commission Vote Date:** November 4, 2024 | **Recording Date:** December 10, 2024
- **Recording Citation:** Plymouth County Registry of Deeds, Book 59527, Page 273; Document No. 78968
- **Agency Reference:** Massachusetts Department of Environmental Protection (MassDEP) File No. 034-1509
- **Subject Area:** 100 Beal Street & Surrounding Wetlands (Tucker's Swamp)
- **Status of Proof:** Recorded Environmental Determination
- **Primary Repository File:** [downloaded_sources/orad_registry_records/ORAD_034-1509_Plymouth_Bk59527_Pg273_2024-12-10.pdf](#)

TLDR: What This Milestone Means in Plain English

Before designing any buildings, environmental scientists surveyed the land and stamped 155 wetland flags around Tucker's Swamp. The Hingham Conservation Commission voted 5–0 to approve this boundary, proving the flat upland plateau is high, dry, and buildable without touching sensitive environmental areas.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **WPA Form 4B Approval:** The Hingham Conservation Commission unanimously approved (5–0) an Order of Resource Area Delineation (ORAD) under the Massachusetts Wetlands Protection Act (M.G.L. c. 131, § 40) and Hingham Wetland Regulations.
2. **155+ Delineated Wetland Flags:** Confirmed the verified boundaries of Bordering Vegetated Wetlands (BVW), Inland Bank, and Mean Annual High-Water Lines protecting Tucker's Swamp and the Weymouth Back River Area of Critical Environmental Concern (ACEC).
3. **Development Plateau Verified:** Confirmed that the 8.6-acre Lot B contains an expansive, buildable upland plateau well outside the 100-foot wetland buffer and 200-foot riverfront protection zones.

Milestone 11: April 16, 2025 – Housing Authority Issues 155-Page RFP

- **Release Date:** April 16, 2025
- **Procurement Authority:** Hingham Housing Authority under M.G.L. c. 30B (Uniform Procurement Act)
- **Target Development:** ~60 Units of Senior Affordable Rental Housing on 8.6-Acre Lot B
- **Status of Proof:** Official Public Procurement Solicitation
- **Primary Repository File:** [downloaded_sources/documents/Hingham-HA-Beal-St-RFP-04-16-25_Final_all-attachments.pdf](#)

TLDR: What This Milestone Means in Plain English

The Housing Authority put out a massive, publicly advertised 155-page request for proposals, inviting top housing developers to submit detailed plans to build high-quality, affordable apartments for seniors aged 62 and older.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **Scope of Solicitation:** Solicits proposals from qualified affordable housing developers to design, permit, finance, construct, and manage a senior rental community.
2. **Site Conditions & Attachments:** Included complete topographic surveys, environmental Phase I/II assessments, traffic analyses, and wetland boundaries.
3. **Leasehold Structure:** Specified that the land would NOT be sold, but instead leased under a long-term ground lease, ensuring the site remains permanently under public housing ownership.

Milestone 12: August 12, 2025 – Housing Authority Unanimously Awards Project to Peabody

- **Meeting Date:** August 12, 2025 (Official Minutes, Page 2)
- **Public Body:** Hingham Housing Authority Board of Commissioners
- **Selected Developer:** Peabody Properties / Affordable Housing Services Corporation (AHSC)
- **Project Specifications:** 3-Story Wood Frame, 68 Age-Restricted Units (62+), 99-Year Ground Lease
- **Status of Proof:** Official Municipal Meeting Minutes
- **Primary Repository File:** [downloaded_sources/meeting_records/HHA_Minutes_2025-08-12_Peabody_Award_Authentic.pdf](#)

TLDR: What This Milestone Means in Plain English

The Housing Authority voted 4–0 to award the project to Peabody Properties—a premier Massachusetts housing developer. Peabody will build a modest 3-story, 68-unit building for seniors. Peabody pays for all construction, gives a \$500,000 upfront fee to the town Housing Authority, and leases the ground for 99 years. The Town borrows \$0.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **The Award Motion:** > “Commissioner Lauter made a motion, seconded by Commissioner Weiser to award the development of the 100 Beal Street property to Peabody Properties/AHSC and to authorize the Executive Director to enter into an LDDA. Roll call: Lauter, aye; Weiser, aye; O’Meara, aye; Suchecki, aye. Motion passed 4–0.”
2. **Project Terms:**
 - **Unit Count:** 68 one- and two-bedroom rental apartments restricted to seniors aged 62 and older.
 - **Upfront Consideration:** Peabody pays a \$500,000 upfront ground lease fee directly to the HHA.
 - **Ground Lease Duration:** 99-year lease; fee title remains with HHA; all improvements revert to HHA at lease end.
 - **Town Financial Obligation:** Exactly \$0 in municipal debt or taxpayer borrowing.

Milestone 13: April 27, 2026 – Town Meeting Defeats Bare Cove Park CAL Project (Article 12)

- **Meeting Date:** April 27, 2026
- **Legislative Body:** Hingham Annual Town Meeting (Warrant Article 12)
- **Subject Matter:** \$29,930,000 Debt Exclusion Borrowing for Center for Active Living (CAL) at Bare Cove Park
- **Vote Result:** 510 Yes, 470 No (52.0% in favor; Failed 2/3 Debt Supermajority)
- **Status of Proof:** Certified Town Meeting Legislative Record
- **Primary Repository File:** [downloaded_sources/documents/Hingham_Town_Meeting_Warrant_2026.pdf](#) & [agent_created_deliverables/executive_reports/Center_for_Active_Living_CAL_Comprehensive_Report_v1.pdf](#)

TLDR: What This Milestone Means in Plain English

This is where all the rumors come from! Town Meeting did NOT vote down 100 Beal Street. Voters rejected a completely different proposal: the Select Board wanted to borrow \$30 million in taxpayer debt to build the “Center for Active Living” (a daytime municipal senior center) inside Bare Cove Park. Under state finance law, town borrowing requires a 2/3 supermajority (66.7%). It only got 52%, so the \$30 million bond failed. 100 Beal Street was never on the ballot!

COMPREHENSIVE DOCUMENTARY DETAILS

1. **The Article 12 Proposal:** The Select Board sponsored Warrant Article 12 asking taxpayers to authorize \$29.93 million in general obligation borrowing to construct a municipal daytime senior center on Bare Cove Park Drive.
2. **Statutory Supermajority Requirement (M.G.L. c. 44, § 7):** Because it proposed municipal debt borrowing, state law strictly mandated a two-thirds supermajority (66.7%).
3. **The Vote Tally:** The vote was 510 in favor, 470 opposed (52.0%). While a simple majority supported it, it fell far short of the required two-thirds supermajority and was declared defeated.
4. **The Confusion:** Because both projects served seniors and both were situated near Bare Cove Park / Tucker’s Swamp, many residents mistakenly believed Town Meeting had “killed the senior housing project.” In reality, 100 Beal Street was never voted on.

Milestone 14: August 25, 2026 – HHA Considers Land Disposition Agreement (LDA)

- **Meeting Date:** August 25, 2026 (7:00 PM)
- **Public Body:** Hingham Housing Authority Board of Commissioners
- **Agenda Item:** Item 9 – Consideration of Land Disposition Agreement with AHSC Peabody Developers LLC
- **Status of Proof:** Public Meeting Agenda
- **Primary Repository File:**
downloaded_sources/meeting_records/HHA_Minutes_2025-08-12_Peabody_Award_Authentic.pdf

TLDR: What This Milestone Means in Plain English

The project is actively moving forward. The Housing Authority is now finalizing the detailed legal contracts with Peabody Properties, setting up the ground lease terms and scheduling the local zoning and design reviews.

COMPREHENSIVE DOCUMENTARY DETAILS

1. **Contractual Formalization:** The Land Disposition Agreement (LDA) establishes the development milestone schedule, permitting deadlines, financing conditions, and ground lease terms.
2. **Permitting Roadmap:** The LDA paves the way for Comprehensive Permit (M.G.L. c. 40B) or local Zoning Board of Appeals review, Massachusetts Department of Housing and Community Development regulatory agreements, and site plan approval.

Clearing Up the Town Confusion: 100 Beal Street vs. Bare Cove Park CAL

The chart below lays out side-by-side why the two projects are completely different:

FEATURE / QUESTION	100 BEAL STREET SENIOR AFFORDABLE HOUSING	BARE COVE PARK CENTER FOR ACTIVE LIVING (CAL)
What is it?	68-Unit Residential Senior Housing (Ages 62+)	Daytime Municipal Senior Activity Center
Property Owner	Hingham Housing Authority (Independent State Entity)	Inhabitants of the Town of Hingham (Municipal Park)
Location	100 Beal Street (8.6-Acre Surplus Plateau, Lot B)	Bare Cove Park Drive (Inside Bare Cove Park boundary)
Taxpayer Cost	\$0 Town Borrowing / \$0 Town Debt	\$29,930,000 Municipal Debt Exclusion Borrowing
Developer / Funding	Private Developer (Peabody) + State/Federal Tax Credits	Town General Obligation Bonds / Property Tax Increase
Town Meeting Action	Never voted down or rejected at Town Meeting	Defeated at Town Meeting on April 27, 2026 (Art. 12)
Current Legal Status	ACTIVE & Moving Forward Under 99-Year Lease	DEFEATED & Stalled Due to Failed Borrowing Vote

Title & Legal Notice

IMPORTANT LEGAL & TITLE NOTICE

This timeline and briefing document has been prepared for community and family educational purposes using authentic public records, recorded deeds, official municipal meeting minutes, and state agency regulatory filings. It does not constitute a formal title examination, certification of title, or legal opinion. The interpretation, validity, and operational enforceability of historic deed clauses, municipal votes, and state agency supervisory powers under M.G.L. c. 121B and M.G.L. c. 184A require formal review and determination by qualified Massachusetts legal counsel.

Official Timeline & TLDR Briefing • 100 Beal Street Senior Affordable Housing Project • Version 1